

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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BENJAMIN THOMAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. THOMAS LODICO,
(Tax Registry No. 938868) and "JOHN" DOE #1-4"
(the names John Doe being fictitious as their true names
are presently unknown),

Defendants.

-----X

Index No.:

SUMMONS WITH NOTICE

Date Purchased:

Plaintiff designates Kings
County as the place of trial.

The basis of venue is locus of
occurrence:

County of Kings

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to appear and answer the complaint in their action and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve a notice of appearance, on the Plaintiff's attorney(s) within 20 days after the service of the summons, exclusive of the day of service (or within 30 days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
September 9, 2017

Yours, etc.

LAW OFFICES OF PAMELA S. ROTH, ESQ. P.C.

By:

PAMELA S. ROTH, ESQ.

Attorney for Plaintiff

BENJAMIN THOMAS

Office & P.O. Address

2747 Coney Island Avenue

Brooklyn, NY 11235

(212) 766-8484

Defendant's address:

Corporation Counsel of the City of New York
Attorneys for The City of New York and
The New York City Police Department
100 Church Street
New York, New York 10007

P.O. THOMAS LODICO Tax Registry No.: 938868
New York City Police Department
1 Police Plaza
New York, NY 10007

Plaintiff's Address:

BENJAMIN THOMAS
660 EAST 98TH STREET, APT. 3C
BROOKLYN, NEW YORK 11212

Notice:

The nature of the action is **PERSONAL INJURY/FALSE ARREST/ UNLAWFUL DETENTION/USE OF EXCESSIVE FORCE/VIOLATION OF CIVIL RIGHTS 42 USC Section 1983/MALICIOUS PROSECUTION / WRONGFUL INCARCERATION**

The relief sought is: **MONETARY DAMAGES**

Upon your failure to appear, judgment will be taken against you by default in a sum that exceeds the jurisdictional limits of all lower courts, with interest from the date of judgment, attorneys' fees and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

-----X

BENJAMIN THOMAS,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. THOMAS LODICO,

(Tax Registry No. 938868) and “JOHN” DOE #1-4”

(the names John Doe being fictitious as their true names
are presently unknown),

Defendants.

-----X

Plaintiff, BENJAMIN THOMAS, by and through his attorneys, **LAW OFFICES OF PAMELA S. ROTH, ESQ. P.C.**, complaining of the defendants The City of New York, PO Thomas Lodico (Tax Registry No. 938868), and “John” Doe #1-4” (collectively “defendants”), upon information and belief alleges as follows:

INTRODUCTION

1. This is an action at law to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunity secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983[and § 1985], [and arising under the law and

statutes of the City and State of New York].

2. Plaintiff, BENJAMIN THOMAS, seeks monetary damages for: the false arrest, false imprisonment, malicious prosecution, unnecessary use of excessive force of said plaintiff, and otherwise, for the violation of his federally guaranteed constitutional and civil rights. Also, plaintiff seeks damages for trespass and for property damage. Plaintiff seeks whatever other relief is appropriate and necessary in order to serve the interest of justice and assure that his remedy is full and complete.

PARTIES, VENUE, AND JURISDICTION

3. At all times herein mention, plaintiff BENJAMIN THOMAS was and still is a resident of the County of the Kings, City and State of New York.

4. This action is brought pursuant to the provisions of 42 U.S.C. § 1981, § 1983, §1985 and 28 U.S.C. §1343 pursuant to pendent state law claims for assault, battery, excessive force, false arrest, false imprisonment, ~~wrongful incarceration~~, malicious prosecution, and intentional infliction of emotional distress and the violation of civil rights. The action arises out of the false arrest, excessive force, assault and battery of the Plaintiff by Police Officers employed by THE CITY OF NEW YORK (hereinafter "CITY") and THE NEW YORK CITY POLICE DEPARTMENT ("NYPD").

5. The cause of action alleged herein arose in the County of the Kings, City and State of New York.

6. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing under the laws of the State of New York.

7. That the defendant THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

8. At all times hereinafter mentioned relevant to the action herein, defendant THE NEW YORK CITY POLICE DEPARTMENT was and still is a department of defendant THE CITY OF NEW YORK.

9. On October 10, 2014, the defendant THE CITY OF NEW YORK by virtue of, under and pursuant to the Laws of the State of New York and the Charter, and Administrative code of the City of New York, created and operated a Police Department for the public benefit and protection of its citizens.

10. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK, owned, operated, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT and employed the police officers and supervisory officers therein.

11. At all times relevant to the action herein, defendant THE CITY OF NEW YORK hired, screened, trained, instructed, managed and supervised its police officers.

12. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility, supervision, and authority over the NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, and is liable to plaintiff for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.

13. Defendant P.O. THOMAS LODICO, (Tax Registry No. 938868) is and was at all times relevant herein, a duly appointed and acting officer, servant, employee and agent of the New York City Police Department ("NYPD"), a municipal agency of THE CITY OF NEW YORK.

14. Defendant LODICO is and was at all times relevant herein, acting under color of state law in the course and scope of his duties and functions as an officer, agent, servant, and employee of defendant THE CITY OF NEW YORK.

15. Defendant LODICO was acting for, and on behalf of, and with the power and authority vested in him by THE CITY OF NEW YORK and the NYPD, and was otherwise performing and engaging in conduct incidental to the performance of his lawful functions in the course of his duties. Defendant LODICO is sued herein in his official and individual capacities.

16. POLICE OFFICERS "JOHN" DOE #1-4 are and were at all times relevant herein, duly appointed and acting officers, servants, employees and agents of the New York City Police Department ("NYPD"), a municipal agency of THE CITY OF NEW YORK.

17. The Doe Defendants are and were at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of defendant THE CITY OF NEW YORK. The Doe Defendants were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the NYPD, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. The Doe

Defendants are sued herein in their official and individual capacities.

18. Plaintiff hereby demands a trial by jury of all issues in this action that are triable.

AS AND FOR A FIRST CAUSE OF ACTION
POLICY OF NON-FEASANCE IN THE PROTECTION
OF PLAINTIFF'S CIVIL RIGHTS

19. At all times relevant hereto, defendant THE CITY OF NEW YORK, employed the defendants P.O. THOMAS LODICO, and "JOHN" DOE #1-4", as police officers in the New York City Police Department.

20. Upon information and belief, police officers employed by the defendants but not limited to P.O. THOMAS LODICO, and "JOHN" DOE #1-4", are graduates of the Police Academy of the City of New York.

21. At all times relevant hereto, defendant THE CITY OF NEW YORK had the duty to competently and sufficiently train within the Police Academy and the Command, Precinct and Patrol levels, the defendant Police Officers in the protection of the Constitutional rights of the plaintiff under the Fourteenth Amendment to the United States Constitution.

22. In addition, the defendant THE CITY OF NEW YORK, had the duty to competently and sufficiently train within the Police Academy and Command, Precinct and Patrol levels, the officers to conform their conduct to a standard, established by law, of the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as to not intentionally, wantonly, and/or negligently inflict injuries to citizens such as plaintiff herein.

23. On or about October 10, 2014 at approximately between 5:00 AM to 6:00 AM, the plaintiff, BENJAMIN THOMAS, was present in the vicinity of his lawful residence located at 660

East 98th Street, Apartment 3C, Brooklyn, New York, sleeping in his apartment.

24. Additionally, on or about October 10, 2014 at approximately between 5:00 AM to 6:00 AM, the Police Officers including but not limited to P.O. THOMAS LODICO, and “JOHN” DOE #1-4”, were present and on duty in the vicinity of the premises known as and designated as at 660 East 98th Street, Apartment 3C, Brooklyn, New York.

25. Upon information and belief, commencing at approximately between 5:00 AM through 6:30 AM, the individual defendant officers illegally trespassed and entered plaintiff’s lawful residence without a search warrant and without an arrest warrant, with loaded guns drawn and brandished at plaintiff, and then searched, invaded, destroyed, damaged, seized, assaulted, battered, bruised, intimidated threatened, and violated plaintiff’s civil rights, and was caused to sustain severe personal injuries and psychological injuries committed upon him, put him in imminent fear of life and limb, without probable cause, grounds or provocation.

26. Upon information and belief, commencing at approximately between 5:00 AM through 6:30 AM, the individual defendant officers illegally trespassed and forced their way into plaintiff’s apartment, by breaking down the front door of the apartment with a crowbar, without a search warrant and without an arrest warrant.

27. Upon information and belief, commencing at approximately between 5:00 AM through 6:30 AM, the individual defendant officers, and members of the Brooklyn Task Force of the NYPD, had their guns drawn on plaintiff and roused him from a deep sleep.

28. Upon information and belief, commencing at approximately between 5:00 AM through 6:30 AM, the individual defendant officers, and members of the Brooklyn Task Force of the NYPD, grabbed plaintiff from his bed in his shorts and undershirt, screaming “Don’t move! Don’t

move!”

29. Plaintiff was never informed why they were in his apartment, ransacking the place, breaking and destroying his furniture, smashing his stereo, smashing his personal home computer, breaking his home security system, destroying kitchen cabinets, and personal belongings, and seizing a large sum of plaintiff’s U.S. currency from his drawer, at a minimum of \$14,260.00 in cash and additional monies from his bureau drawer.

30. Plaintiff showed defendants a copy of his pension check in the amount of \$14,260.00, which was the cash from his pension check, as he retired days earlier from Brookdale Hospital as a maintenance worker after 22 years of employment.

31. Defendants handcuffed plaintiff to a chair inside his lawful residence while they searched his apartment and personal belongings without a search warrant and never read plaintiff his Miranda warnings.

32. Defendants did not recover any weapons nor illicit drugs in plaintiff’s apartment.

33. Plaintiff suffers from mental health issues and is under the care of medical doctors.

34. Defendants seized all of plaintiff’s prescription medication of Celexa and Risperidone, prescribed by his mental health physicians.

35. Defendants demanded information from plaintiff about illegal drug activity and threatened and intimidated plaintiff, even as plaintiff told them that he was under the care of mental health doctors for his mental health issues.

36. Plaintiff was never apprised of his Constitutional rights.

37. Upon information and belief, the illegal trespass, search, intimidation and civil rights violations by defendants P.O. THOMAS LODICO, and “JOHN” DOE #1-4”, deprived

plaintiff of his rights, liberties and freedoms under color of State law in violation of 42 U.S.C. section 1983 as well as other applicable statutes, rules, regulations and laws.

38. Upon information and belief, as a result of the aforesaid illegal trespass, search, intimidation and civil rights violation of plaintiff BENJAMIN THOMAS, plaintiff was forcibly detained and illegally confined by defendants P.O. THOMAS LODICO, and "JOHN" DOE #1-4". Defendants deprived plaintiff of his rights, liberties and freedoms under color of State law in violation of 42 U.S.C. section 1983.

39. As a further result of the deprivation of plaintiff BENJAMIN THOMAS's right to be free from the deprivation of rights guaranteed to him by the Fourteenth Amendment to the United States Constitution and all other statutes, rules, regulations and laws as well as the physical damage done to plaintiff by defendants Upon information and belief, the illegal trespass, search, intimidation and civil rights violations by defendants P.O. THOMAS LODICO, and "JOHN" DOE #1-4", plaintiff was caused to suffer injury and damages both mentally and physically, severe embarrassment, abusive treatment, verbal assault and abuse, put in imminent fear of life and limb, harassment, negligent and intentional infliction of emotional distress, and illegal confinement.

40. On or about October 10, 2014, in violation of the rights, privileges and immunities guaranteed to plaintiff under the Fourteenth Amendment to the United States Constitution and under the color of the State law, the police officers and each of them, acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, illegally trespassed, searched, invaded plaintiff's domicile, violated plaintiff's Civil Rights, intentionally and negligently inflicted emotional distress on plaintiff, and harassed plaintiff, even though defendants' employees knew or should have known that the plaintiffs were wholly innocent of any criminal charges.

41. The force used by the defendants was excessive, unnecessary, unwarranted, violent, and violated plaintiff's rights under 42 U.S.C. Section 1983.

42. That by reason of their illegal trespass, search of plaintiff's domicile, violation of plaintiff's Civil Rights, intentional and negligent infliction of emotional distress, harassment of plaintiff, personal injury, plaintiff's medical expenses, legal expenses, and property damages BENJAMIN THOMAS has been damaged in an amount to be determined upon trial of this action.

43. That upon information and belief, at all times herein mentioned, the defendant employed various persons as Police Officers who were duly designated to orderly conduct various affairs within the City of New York, in the Borough of Brooklyn, County of Kings, City and State of New York.

44. That upon information and belief, at all times herein mentioned, various persons employed by the CITY and NEW YORK POLICE DEPARTMENT and at the time and place of the occurrence complained of as hereinafter set forth were acting in the scope of their employment, on the business of the aforementioned CITY and New York City Police Department.

45. That upon information and belief at all times hereinafter mentioned, 660 E. 98th Street, Apt. 3C, Brooklyn, New York 11236.

46. As a result of this arrest, plaintiff sustained serious and severe personal injuries.

47. The plaintiff was not engaged in any suspicious or illegal conduct, and complied with defendants' requests.

48. Although there was no legal basis for doing so, the defendants searched plaintiff's person.

49. The search yielded no evidence of gun, drugs, or contraband.

50. Despite the absence of any evidence of wrongdoing in the part of plaintiff, the defendants applied excessively tight handcuffs to the plaintiff and formally arrested him.

51. The handcuffs applied to plaintiff were excessively tight and caused pain to his wrists and arms.

52. Plaintiff was then taken to a local area precinct believed to be the 69th Precinct where he complained to the defendants about the excessively tight handcuffs.

53. At this time, plaintiff was subjected to further excessive force when he was thrown to the ground, kicked, punched, and choked by the defendant officers.

54. Plaintiff was then taken by the defendants to a local area hospital believed to be Brookdale Hospital, where he was treated for the injuries, including broken teeth and facial lacerations, which he sustained as a result of the excessive force he endured at the hands of the defendants.

55. Plaintiff was then taken to Kings County Central Booking where he was held for several days before he was arraigned.

56. Plaintiff was eventually arraigned on a criminal complaint sworn to and/or made on the basis of allegations given by the defendants, and at that time the charges against plaintiff were dismissed.

57. The factual allegations sworn to by the defendants against plaintiff were materially false and deliberately made to justify the illegal search, false arrest, and excessive force perpetrated by the defendants against plaintiff.

58. It was objectively unreasonable for the defendants to arrest plaintiff, as there was no evidence that he had engaged in any unlawful conduct.

59. At no time prior to or during the encounter and/or arrest did there exist probable or otherwise sufficient legal cause to seize or arrest plaintiff, nor could the defendants have reasonably believed that such cause existed.

60. At no time did there exist any basis to use any level of force against the plaintiff, much less the force actually employed, nor could any of the defendants have reasonably believed that such force was reasonable, lawful, appropriate, or necessary.

61. At no time prior to or during the encounter was there sufficient legal cause to believe that plaintiff was engaged in any unlawful or suspicious activity.

62. At no time did any of the defendants take steps to intervene in, prevent, or otherwise limit the misconduct engaged in by the defendants against plaintiff.

63. The individual defendants, including the Doe Defendants, intentionally and deliberately gave false statements and/or failed to file accurate or corrective statements, or otherwise failed to report the conduct of the defendants who engaged in the misconduct described herein.

64. At all times relevant herein, the defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests without legal justification or excuse.

**AS AND FOR A FIRST CAUSE OF ACTION DEPRIVATION OF
RIGHTS UNDER THE UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983**

65. Plaintiff BENJAMIN THOMAS repeats and reiterates the allegations set forth in

the foregoing paragraphs with the same force and effect as though fully stated herein.

66. By their conduct and actions in falsely arresting, imprisoning, through their assault and battery of plaintiff, failing to intercede on behalf of BENJAMIN THOMAS and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of the defendants, defendants P.O. THOMAS LODICO and JOHN DOEs individually and collectively, acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused plaintiff to be unlawfully subjected to excessive and unreasonable force and false arrest, and caused injury and damage in violation of the plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

67. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A SECOND CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983
BY THE CITY OF NEW YORK**

68. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

69. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department, and through defendants "POLICE OFFICERS" had in

effect actual and/or *de facto* policies, practices, customs and usages that were a direct and proximate cause of the unconstitutional conduct alleged of the individual defendants.

70. At all times material to this complaint, defendant THE CITY OF NEW YORK failed to properly train, screen, supervise or discipline its employees and police officers, including defendants "POLICE OFFICERS," concerning the correct practices in having probable cause and/or reasonable suspicion to detain a person, and then permit detention, inflict abuse and excessive force upon said person, batter and assault and sustain a false arrest, thereby permitting defendants "POLICE OFFICERS," to be in a position to violate plaintiff's rights.

71. Defendant THE CITY OF NEW YORK, being aware that such lack of training, supervision, and discipline leads to improper conduct by its employee police officers, acted with deliberate indifference in failing to establish a program of effective training, supervision and discipline. Defendant THE CITY OF NEW YORK is aware of the persistent and substantial risk of improper and incorrect arrest and detention, and effective training, supervision, and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens and which are officially tolerated by defendant THE CITY OF NEW YORK. Such policies, practices, customs or usages were the direct and proximate cause of the harm to the plaintiff, in violation of plaintiff's rights as guaranteed by 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

72. Defendant The City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

73. Defendant had actual or constructive knowledge that there was inadequate supervision over and/or within the NYPD with respect to its members' abuse of their authority, use of excessive force, abuse of arrest powers, and other blatant violations of the United States Constitution and rules and regulations of the NYPD. Despite ample notice of inadequate supervision, defendants took no steps to ensure that reasonable and appropriate levels of supervision were put in place to reasonably ensure that NYPD members engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the plaintiff herein.

74. The defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic, and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice, and custom of utilizing illegal and impermissible searches, arrests, detentions, malicious prosecution, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the plaintiff's arrest.

75. As a direct result of defendant's actions, plaintiff suffered a denial of his federal statutory rights, constitutional rights and privileges. Such deprivations were in violation of the rights secured to plaintiff, BENJAMIN THOMAS by the Fourth and Fourteenth Amendments of the United States Constitution and by Title 42 U.S.C.A § 1983.

76. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great

humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
DEPRIVATION OF SUBSTANTIVE DUE PROCESS UNDER THE UNITED
STATES CONSTITUTION AND 42 U.S.C. § 1983**

77. Plaintiff repeats, reiterates and realleges each and every allegation set forth in the foregoing paragraphs with the same force and effect as if fully set forth herein.

78. The defendants' conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

79. As a result of the foregoing, plaintiff BENJAMIN THOMAS was deprived of his liberty and right to substantive due process, causing emotional and physical injuries.

80. As a result of the foregoing, plaintiff BENJAMIN THOMAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR A VIOLATION OF THE EQUAL PROTECTION CLAUSE UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983**

81. Plaintiff BENJAMIN THOMAS repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

82. The defendants falsely arrest plaintiff, subjected him to excessive force, and wrongfully imprisoned plaintiff, or otherwise failed to intervene to prevent such treatment committed in their presence by other members of the NYPD.

83. As a result of the foregoing, plaintiff BENJAMIN THOMAS was deprived of his

rights under the Equal Protection Clause of the United States Constitution.

84. As a result of the foregoing, plaintiff BENJAMIN THOMAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

**AS AND FOR A FIFTH CAUSE OF ACTION
FOR FAILURE TO INTERVENE
UNDER THE UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983**

85. Plaintiff BENJAMIN THOMAS repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

86. Defendants had an affirmative duty to intervene on behalf of plaintiff BENJAMIN THOMAS, whose constitutional rights were being violated in the presence of other officers.

87. The defendants failed to intervene to prevent the unlawful conduct described herein.

88. As a result of the foregoing, plaintiff BENJAMIN THOMAS's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

89. As a result of the foregoing, plaintiff BENJAMIN THOMAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs, and disbursements of this action.

**AS AND FOR A SIXTH CAUSE OF ACTION
FOR SUPERVISORY LIABILITY
UNDER THE UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983**

90. Plaintiff BENJAMIN THOMAS repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

91. The supervisory defendants personally cause plaintiff's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

92. As a result of the foregoing, plaintiff BENJAMIN THOMAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs, and disbursements of this action.

**AS AND FOR AN SEVENTH CAUSE OF ACTION
FALSE ARREST AND EXCESSIVE FORCE
UNDER THE LAWS OF THE STATE OF NEW YORK**

93. Plaintiff BENJAMIN THOMAS repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

94. Defendants arrested plaintiff BENJAMIN THOMAS without probable cause, subjected him to force in excess of what was reasonable beyond the circumstances, and violated his right to be free from unreasonable searched and seizures.

95. Plaintiff was detained against his will for an extended period of time and subjected to Physical restraint.

96. Plaintiff was also subjected to multiple searches, including strip searches, without

probable cause and without legal basis or justification.

97. Plaintiff was also subjected to excessive force at the hands of the defendants.

98. As a result of the aforementioned, plaintiff BENJAMIN THOMAS was unlawfully imprisoned in violation of the laws of the State of New York.

99. As a result of the aforementioned conduct suffered physical and mental injury, loss of freedom and liberty, together with embarrassment, humiliation, shock, and fright.

100. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR RESPONDEAT SUPERIOR PURSUANT TO STATE LAW

101. Plaintiff BENJAMIN THOMAS repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

81. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility supervision, and authority over THE NEW YORK CITY POLICE DEPARTMENT and, its agents, servants and employees, and is liable to plaintiff for the acts complained of herein under the theories of vicarious liability and *respondent superior*.

82. On OCTOBER 10, 2014 at the aforementioned location, Plaintiff, BENJAMIN THOMAS was detained and held under the imprisonment and control of the defendants under false pretenses.

83. That on or about OCTOBER 10, 2015, due to the negligence of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, falsely arrested and imprisoned the Plaintiff, BENJAMIN THOMAS, without warrant, authority of law or probable cause therefore.

84. That the acts and conduct on the part of the individual defendants, individually and collectively, constituting the false arrest and false imprisonment consisted in part of the following; unlawfully and intentionally detaining and confining Plaintiff BENJAMIN THOMAS against his will and without his consent; unlawfully and intentionally detaining and confining Plaintiff without privilege, probable cause or valid legal process; unlawfully detaining and confining Plaintiff through the unlawful arrest of Plaintiff; unlawfully detaining and confining Plaintiff through the use of force; unlawfully arresting Plaintiff and placing Plaintiff in handcuffs without reasonable cause therefore, and committing such other acts resulting in the unlawful arrest and imprisonment of Plaintiff.

85. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

86. That Plaintiff BENJAMIN THOMAS was conscious of the confinement.

87. That as a direct, sole and proximate result of the false arrest, imprisonment, and excessive force, Plaintiff BENJAMIN THOMAS was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal and business reputation, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.

88. By the individual and collective actions described above, defendants caused

plaintiff to be falsely arrested and/or falsely imprisoned plaintiff without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the Jaws of the Constitution of the State of New York.

89. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A NINTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO THE
COMMON LAW OF THE STATE OF NEW YORK VIA BATTERY**

90. Plaintiff BENJAMIN THOMAS repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

91. Defendant THE CITY OF NEW YORK is vicariously liable to the plaintiff for the individual defendants' common tort of battery via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(l)(b).

92. That by reason of the battery, the plaintiff was harmed physically while unlawfully detained, and that the plaintiff was otherwise harmed as a result of the defendants' actions.

93. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A TENTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHT UNDER
NEW YORK STATE LAW VIA ASSAULT**

94. Plaintiff BENJAMIN THOMAS repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

95. That on the aforementioned date, time and place, the defendants committed the tort of assault against the plaintiff by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, defendants violated the laws and Constitution of the State of New York and otherwise violated plaintiff's rights under New York Law

96. That the defendant THE CITY OF NEW YORK is vicariously liable to the plaintiff for the individual defendants common law tort of assault via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).

97. That by reason of the aforesaid committed by the defendants, plaintiff suffered and continues to suffer physical injury and that he was otherwise damaged.

98. As a result of the foregoing, plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
UNDER THE LAWS OF THE STATE OF NEW YORK**

103. Plaintiff BENJAMIN THOMAS repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

104. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

105. The aforementioned conduct was committed by the defendants while acting within the scope and furtherance of their employment by defendant CITY OF NEW YORK.

106. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiff BENJAMIN THOMAS.

107. As a result of the foregoing, plaintiff BENJAMIN THOMAS suffered emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

108. As a result of the foregoing, plaintiff BENJAMIN THOMAS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

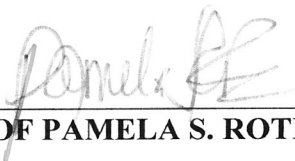
WHEREFORE, plaintiff demands the following relief on all of the foregoing causes of

action, jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling a jury to consider the merits of the claims herein;
- d. Costs and interest and attorneys' fees;
- e. Such other further relief as this court may deem appropriate and equitable.

Dated: Brooklyn, New York
September 9, 2017

Yours, etc.



LAW OFFICES OF PAMELA S. ROTH, ESQ. P.C.

By:

PAMELA S. ROTH, ESQ.

Attorney for Plaintiff

BENJAMIN THOMAS

Office & P.O. Address

2747 Coney Island Avenue

Brooklyn, NY 11235

(212) 766-8484

VERIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF KINGS)

PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of New York, states:

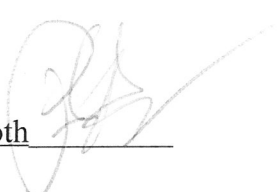
That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I have read the foregoing ***Summons and Verified Complaint*** and know the contents thereof; the same is true to my own knowledge except as to those matters therein alleged to be on information and belief and as to those matters, I believe them to be true.

The reason this Verification is made by me and not by Plaintiff is that the residence of Plaintiff is outside the County wherein your deponent maintains her office.

The grounds of my belief as to all matters not stated upon my own knowledge are information, books, records, data and correspondence contained in deponent's file and conversation had with the plaintiff herein.

I affirm that the foregoing statements are true under the penalty of perjury.

Dated: September 9, 2017



Pamela S. Roth

PAMELA S. ROTH

CERTIFICATION

STATE OF NEW YORK)

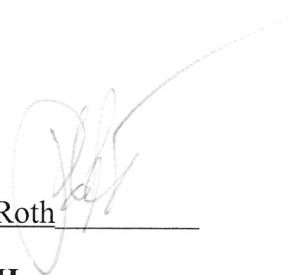
) ss.:

COUNTY OF KINGS)

PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of New York, states:

That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I hereby certify, pursuant to 22 NYCRR 130-1.1(a) and after performing an inquiry reasonable under the circumstances, that the within *Summons and Verified Complaint* and its respective contentions, are not frivolous as set forth in and defined by 22 NYCRR 130-1.1(c).

Dated: September 9, 2017



Pamela S. Roth

PAMELA S. ROTH

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

INDEX NO.

BENJAMIN THOMAS,

Plaintiff,

-against-

**THE CITY OF NEW YORK, P.O. THOMAS LODICO,
(Tax Registry No. 938868) and "JOHN" DOE #1-4"
(the names John Doe being fictitious as their true names
are presently unknown)**

Defendants.

**SUMMONS WITH NOTICE AND
VERIFIED COMPLAINT**

LAW OFFICES OF PAMELA S. ROTH, ESQ. P.C.

Attorney for Plaintiff

BENJAMIN THOMAS

Office & P.O. Address
2747 Coney Island Avenue
Brooklyn, NY 11235
(212) 766-8484

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: September 9, 2017

Signature: Pamela S. Roth

Print Signer's Name: PAMELA S. ROTH

Service of a copy of the within ^ is hereby admitted

Dated,
^

Attorney(s) for ^